



Industrial Injuries and Diseases (Old Cases) Act 1975

1975 CHAPTER 16

An Act to consolidate the Industrial Injuries and Diseases (Old Cases) Acts 1967 to 1974 and related enactments.
[20th March 1975]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Continuation and supplementation of workmen's compensation

1. The Workmen's Compensation Acts and any other enactment specified in Schedule 9 to the original Industrial Injuries Act which was repealed by section 89 of that Act shall continue to apply to any cases to which, if the former Old Cases Act had not been passed, they would have applied by virtue of the said section 89, being certain cases where a right to compensation arises or has arisen in respect of employment before 5th July 1948.

Continuation of workmen's compensation in certain cases.

2.—(1) The Secretary of State may, by scheme made with the consent of the Treasury, provide for conferring a right to allowances payable out of the National Insurance Fund on persons who are, or have at any time after 20th March 1951 been, entitled to weekly payments by way of workmen's compensation, other than a person whose entitlement to such payments—

Schemes for supplementing workmen's compensation.

- (a) arose in consequence of an accident happening after 31st December 1923 ; and
- (b) ceased before 5th July 1956.

(2) Subject to the provisions of this Act, the right to such an allowance or to a payment on account thereof shall be subject to such conditions, and the rate of the allowance shall be such, as may be provided by a scheme under subsection (1) of this section.

(3) The allowances for the payment of which a scheme under subsection (1) of this section may make provision shall be—

- (a) where the relevant accident happened before 1st January 1924, an allowance (in this section referred to as a “basic allowance”) in respect of any period such as is mentioned in subsection (7) below;
- (b) an allowance in respect of any period such as is mentioned in subsection (7)(a) (in this section referred to as a “major incapacity allowance”);
- (c) subject to subsections (4) and (5) below, an allowance in respect of any period such as is mentioned in subsection (7)(b) (in this section referred to as a “lesser incapacity allowance”);

and a major incapacity allowance or lesser incapacity allowance in respect of any period shall be payable whether or not a basic allowance is also payable in respect of that period.

(4) A lesser incapacity allowance—

- (a) shall not be payable to any person in respect of any period unless there is or may be expected to be (or, but for the cesser at a time after 1st March 1966 of that person's entitlement to workmen's compensation, would or might be expected to have been) payable to that person in respect of that period either a weekly payment by way of basic allowance or a weekly payment by way of workmen's compensation which is not a notional payment;
- (b) except to a person who immediately before 1st March 1966 was receiving an allowance under a scheme made under the Workmen's Compensation (Supplementation) Act 1951, shall not be payable if the relevant accident happened after 31st December 1923 and the claimant's entitlement to workmen's compensation in consequence thereof ceased before 1st March 1966.

1951 c. 22.

(5) For the purposes of a lesser incapacity allowance, a weekly payment by way of workmen's compensation shall be treated as a notional payment if awarded or paid for the purpose of safeguarding a potential entitlement to compensation and not related to any existing loss of earnings; and a scheme under subsection (1) above may provide that—

- (a) in such circumstances or cases as may be specified in the scheme: and

- (b) in particular, in cases where weekly payments by way of such compensation are being paid to a person to whom such payments were not made, or were made at a lower rate, during the period of 12 months immediately preceding such date not earlier than 30th November 1965 as may be specified in the scheme,

a weekly payment by way of such compensation shall be deemed to be a notional payment unless the contrary is proved.

(6) The weekly rate—

- (a) of a basic allowance shall not exceed £2 less the amount of the recipient's workmen's compensation and, in respect of a period such as is mentioned in subsection (7)(b) below which is a period of partial incapacity only, shall also not exceed the difference between 2/3rds of the amount representing his weekly loss of earnings determined in accordance with a scheme under subsection (1) and the amount of his workmen's compensation ;
- (b) of a major incapacity allowance shall be the corresponding disablement pension rate less the amount of the recipient's workmen's compensation and less the amount of his basic allowance, if any ;
- (c) of a lesser incapacity allowance shall not exceed £7.

(7) The periods referred to in the foregoing provisions of this section are—

- (a) any period during which the person claiming or receiving an allowance under this section—
 - (i) being or having been entitled to his workmen's compensation in respect of any injury or disease other than pneumoconiosis or byssinosis, is as a result of that injury or disease totally incapable of work and likely to remain so incapable for a considerable period ; or
 - (ii) being or having been entitled to his workmen's compensation in respect of pneumoconiosis, is certified under a scheme made under the Workmen's 1918 c. 14. Compensation (Silicosis) Act 1918 (as originally enacted or as extended by the Workmen's Com- 1924 c. 40. pensation (Silicosis) Act 1924) or under section 47 of the Workmen's Compensation Act 1925 (as 1925 c. 84. originally enacted or as extended by any subsequent enactment), or is determined in accordance with a scheme under subsection (1) above, to be totally disabled ; or

(iii) is, or but for the determination of his right would be, entitled to his workmen's compensation in respect of byssinosis ; or

(iv) being or having been entitled to his workmen's compensation in respect of two or more injuries or diseases such as are mentioned in the three foregoing sub-paragraphs, is as the joint result of those injuries or diseases totally incapable of work and likely to remain so incapable for a considerable period ;

(b) any period which, not being a period such as is mentioned in paragraph (a) of this subsection, is a period of total or partial incapacity for work resulting from the relevant injury or disease.

Provisions
supplementary
to s. 2.

3.—(1) For the purposes of section 2 of this Act—

(a) the expressions “relevant accident” and “relevant injury or disease” mean the accident in consequence of which or, as the case may be, the injury or disease in respect of which, an entitlement to weekly payments by way of workmen's compensation arose ;

(b) any reference to the happening of an accident shall, in relation to a case of disease, be construed in the same way as for the purposes of the Workmen's Compensation Acts ;

(c) a payment—

(i) under the Workmen's Compensation (War Addition) Acts 1917 and 1919 ; or

(ii) under the Workmen's Compensation (Supplementary Allowances) Act 1940 as amended by the Workmen's Compensation (Temporary Increases) Act 1943,

shall be treated as a weekly payment by way of workmen's compensation.

(2) For the purposes of section 2(1), a person shall be deemed to be or have been entitled to weekly payments by way of workmen's compensation at any time if he would be or, as the case may be, have been so entitled at that time if—

(a) the amount of any payment, allowance or benefit received by him otherwise than by way of workmen's compensation ; or

(b) where the relevant accident happened before 1st January 1924, either that amount, or the amount he is earning

1940 c. 47.

1943 c. 49.

or able to earn in some suitable employment or business, or both those amounts, were sufficiently reduced.

(3) Subject to subsection (7) below, for the purpose of the reference in section 2(7)(b) to a period of total incapacity for work resulting from the relevant injury or disease, a person who is or has been unable to obtain employment shall be treated as subject to such an incapacity if he is treated as being so for the purposes of his workmen's compensation in respect of the relevant injury or disease and in such other circumstances as may be provided by a scheme under section 2.

(4) Any reference in section 2 or this section to the amount of a person's workmen's compensation shall (subject to subsections (5) to (7) below) be taken as referring to the amount, if any, of the weekly payments to which for the time being he is, or would but for the determination of his right be, entitled in respect of the relevant injury or disease ;

Provided that—

(a) where in fixing the amount of those weekly payments under the provisions relating thereto regard was had to any payment, allowance or benefit which he might receive during the period of his incapacity from the person liable for the compensation, and the amount is shown to have been reduced in consequence, the amount of those weekly payments shall for the purposes of this subsection be taken to be the reduced amount so fixed with the addition of the amount of the reduction ; and

(b) where the amount of those weekly payments has not been fixed under the said provisions, it shall be fixed for the purposes of this subsection without regard to any such payment, allowance or benefit as aforesaid.

(5) A scheme under section 2 may include provision that, in such special circumstances or cases and for such purposes as may be specified in the scheme, any reference in section 2 or this section to the amount of a person's workmen's compensation shall be taken as referring to such amount as it may be determined in manner provided by the scheme ought reasonably and properly to have been the amount of the weekly payments referred to in subsection (4) of this section.

(6) Where a person is, or has at any time after 20th March 1951 been, entitled to payments under the enactments referred to in subsection (1)(c)(i) or (ii) of this section but ceased before 21st March 1951 to be entitled to any other weekly payments by way of workmen's compensation in respect of the relevant

injury or disease, the amount of his workmen's compensation shall for the purposes of section 2 be calculated as if he had not ceased to be entitled to such other payments.

(7) A scheme under section 2 may provide for modifying the operation of subsections (3) to (5) of this section in relation to a person whose workmen's compensation is or was compensation under a contracting-out scheme in such manner as appears to the Secretary of State to be proper having regard to the provisions of the contracting-out scheme.

Provisions as
to schemes
under s. 2.

4.—(1) The provisions of this section shall have effect with respect to schemes under section 2 of this Act, and any such scheme is hereafter in this section referred to as "a scheme."

(2) A scheme may make such incidental or supplementary provision as appears to the Secretary of State to be necessary or expedient for the purposes of section 2 and may vary or revoke any earlier scheme.

(3) A scheme shall in particular make provision with respect to the making of claims for allowances, with respect to the determination of questions arising on or in connection with any such claim or the payment of allowances, and with respect to any other matters necessary for the proper administration of any scheme; and, subject to any provisions of a scheme for reviewing decisions, the decision in accordance with a scheme of any question arising under a scheme shall be final for the purposes of section 2.

(4) Without prejudice to the generality of subsection (2) above, a scheme may make provision—

(a) for the constitution of a board to be charged with the general administration of any scheme and (subject to any provisions of a scheme) with the determination of questions arising under any scheme, and for enabling the decision of the board on any such question to be proved in legal proceedings by means of a certificate or otherwise;

(b) for enabling any class or description of such questions to be determined as if they had arisen under the Social Security Act;

(c) for applying, with or without modifications—

(i) section 87(1) and (2) of the Social Security Act (benefit to be inalienable), or

(ii) any regulations under section 81 of that Act (payment of benefit), subsections (1), (2) or (4)(b), (c) or (e).

or for making provision corresponding thereto;

- (d) for requiring persons claiming or receiving allowances to furnish information and evidence and to undergo medical or other examination, for summoning persons to attend and give evidence or produce documents at any hearing for the purpose of determining questions arising under a scheme, and for authorising the administration of oaths to witnesses at any such hearing;
- (e) for requiring the repayment to the National Insurance Fund in whole or in part of payments under section 2 subsequently found not to have been due, for the deduction of any sums so required to be repaid from payments under section 2 or by way of industrial injuries benefit under the Social Security Act, and for the deduction from payments under section 2 of any sums which may by virtue of any provision of that Act be recovered by deduction from any payment by way of such benefit.

(5) The Secretary of State may pay to members of any board constituted by a scheme such remuneration or allowances, and may make such other payments in connection with the administration of any scheme (including payments on account of travelling expenses or loss of remunerative time or both to persons required to undergo medical or other examination or to attend any hearing for the purpose of determining questions arising under any such scheme), as he may with the consent of the Minister for the Civil Service determine.

(6) Notwithstanding anything in this Act, a scheme shall not require a person to submit himself to medical treatment.

(7) A scheme varying an earlier scheme may do so in such a way as to make allowances payable, or payable at an increased rate, under the earlier scheme in respect of periods before the making of the later scheme.

(8) The power to make a scheme shall be exercisable by statutory instrument, and a scheme—

- (a) except when made for the purpose only of replacing provisions of previous schemes with new provisions to the same effect, or of making provision consequential on the making of an up-rating order under the Social Security Act, shall not be made unless a draft of the scheme has been laid before Parliament and approved by resolution of each House;
- (b) when made for that purpose only, shall be subject to annulment in pursuance of a resolution of either House of Parliament.

*Industrial diseases benefit in respect of pre-1948
employment*

Industrial
diseases
benefit
schemes.

5.—(1) The Secretary of State may, by scheme made with the consent of the Treasury, provide for the payment of allowances or other benefit out of the National Insurance Fund—

(a) to persons who, having been employed in Great Britain before 5th July 1948 in any occupation prescribed in relation to a disease to which this section applies, are at the commencement of the scheme, or thereafter become, disabled by that disease ;

(b) to any person who, as the joint result of—

(i) a disease to which this section applies in respect of which he is, or has at any time after 4th July 1956 been, entitled to weekly payments by way of an allowance by virtue of paragraph (a) of this section or by virtue of section 1(1)(a) of the Pneumoconiosis and Byssinosis Benefit Act 1951 ; and

(ii) one or more other diseases or injuries in respect of each of which he is, or has at any such time been, entitled to weekly payments by way either of such an allowance or of workmen's compensation or of an allowance under section 2 of this Act or under the Workmen's Compensation (Supplementation) Act 1951,

is totally incapable of work and likely to remain so incapable for a considerable period ;

(c) to the dependants of persons who, having been so employed, die, or have at any time after 31st December 1949 died, as a result of the disease in question, so however, that in relation to such a disease as is mentioned in subsection (2)(d) below the foregoing provisions of this paragraph shall have effect as if for the reference to 31st December 1949 there were substituted a reference to 27th July 1967.

(2) The diseases to which this section applies are—

(a) pneumoconiosis ;

(b) byssinosis;

(c) any disease in respect of which compensation was payable under the Workmen's Compensation Act 1925 by virtue of section 43 of that Act ;

(d) any other disease which is a malignant or potentially malignant neoplasm and is for the time being prescribed

1951 c. 4 (15 &
16 Geo. 6 & 1
Eliz. 2).

1951 c. 22.

1925 c. 84.

for the purposes of Chapter V of Part II of the Social Security Act ;

but a scheme under this section shall not provide for the payment of benefit in respect of such a disease as is mentioned in paragraph (c) or (d) above unless the Secretary of State is satisfied that the disease is of such a nature that there are likely to be cases where—

- (i) a person suffers from it and it is due to the nature of his employment ; but
- (ii) it does not manifest itself until more than 12 months after he has ceased to be engaged in the employment.

(3) Subject to the provisions of this Act, the right to benefit in pursuance of a scheme under this section shall be subject to such conditions as may be provided by the scheme, and the rate or amount of any such benefit shall be such as may be so provided.

(4) A scheme under this section may make provision as to the circumstances in which any benefit payable to a person in the pursuance of the scheme may be paid to another person on his behalf.

6.—(1) A scheme under section 5 of this Act shall not provide for the payment of benefit to or in respect of a person disabled or dying as a result of a disease to which that section applies—

Restrictions on scope of schemes under s. 5.

- (a) if he or any other person is or has been entitled to benefit in respect of the disablement or death under the Social Security Act ;
- (b) if he or any member of his family within the meaning of the Workmen's Compensation Act 1925 has received or is entitled to compensation in respect of the disablement or death under the Workmen's Compensation Acts or by virtue of a scheme made or certified thereunder or by virtue of any scheme or law in force in any country or territory outside Great Britain providing for compensation in respect of that disease ; 1925 c. 84.
- (c) if he would have received or would be entitled to such compensation by virtue of any scheme made or certified as aforesaid but for the fact that he was or is entitled to receive compensation in respect of disablement from any other disease or in respect of an injury by accident ;
- (d) if he or his personal representative or any of his relatives has recovered any sum by way of damages in respect of the disablement or death, whether at common law or under the Fatal Accidents Acts 1846 to 1959, or the Law Reform (Miscellaneous Provisions) Act 1934 ; 1934 c. 41.
- (e) if throughout the employment mentioned in section 5(1)(a) he was employed otherwise than as a workman within the meaning of the Workmen's Compensation Act 1925.

(2) A scheme under section 5 shall not provide for the payment of benefit to or in respect of a person disabled or bying as a result of the disease of byssinosis unless he has been employed for a period or periods amounting in the aggregate to not less than 10 years in an occupation prescribed in relation to that disease, and shall not provide for the payment of benefit to a person so disabled unless it is determined in accordance with the scheme that the disablement is likely to be permanent.

(3) The foregoing provisions of this section shall be without prejudice to any other restrictions which may be imposed by a scheme under section 5 in respect of the persons to or in respect of whom benefit is payable under the scheme; and those other restrictions shall include restrictions relating to the nature or degree of disablement.

(4) For the avoidance of doubt, the benefits in relation to which restrictions are or may be imposed by virtue of this section shall not include an allowance by virtue of section 5(1)(b) of this Act.

Nature and
amount of
benefit under
s. 5.

7.—(1) The benefit payable to any person in pursuance of a scheme under section 5 of this Act by virtue of subsection (1)(a) or (b) of that section shall be by way of a weekly allowance.

(2) Subject to the provisions of this Act and to any provisions of the scheme for the adjustment of benefit thereunder by reference to pensions, allowances or other benefits payable out of public funds, the weekly rate—

- (a) of an allowance by virtue of section 5(1)(a) in respect of total disablement shall be the corresponding disablement pension rate;
- (b) of an allowance by virtue of section 5(1)(a) in respect of disablement which is not total shall be £7;
- (c) of an allowance by virtue of section 5(1)(b) shall be the corresponding disablement pension rate less the amount of any weekly payments by way of workmen's compensation payable to the recipient in consequence of any of the diseases or injuries in consequence of which the allowance is payable.

(3) The weekly rate of an allowance such as is mentioned in subsection (2)(a) or (b) above shall be increased, in such circumstances and subject to such conditions as may be prescribed by the scheme (in accordance, for the purposes of paragraph (b), with any regulations in force under paragraph 6 of Schedule 8 to the Social Security Act)—

- (a) in any case, by an amount equal to the unemployability supplement which would be payable under section 55

of that Act or, as the case may be, sections 55 and 56 of that Act if the person entitled to the allowance were entitled to a disablement pension ;

- (b) where the person requires constant attendance as the result of the disablement, by an amount equal to any increases which would be payable under section 61 or 63 of that Act if he were entitled to a disablement pension in respect of an assessment of 100 per cent. ;
- (c) where the person has a family which includes a child or children within the meaning of sections 64 and 65 of that Act, by an amount equal to any increase which would be payable under section 64 in respect of that child or those children if he were entitled to injury benefit ;
- (d) where the person is treated under the provisions of the scheme as residing with or contributing at a weekly rate of not less than the amount hereinafter mentioned towards the maintenance of his wife, by an amount equal to any increase which would be payable under section 67 of that Act in respect of her if he were entitled to injury benefit.

(4) Where under this section an allowance comprises such an increase as is mentioned in subsection (3)(a) above, paragraphs (c) and (d) of that subsection shall have effect with the substitution for references to injury benefit of references to disablement pension plus unemployment supplement.

(5) The benefit payable in pursuance of such a scheme in respect of the death of any person shall be payable to or for the benefit of such persons as may be prescribed by the scheme (being members of the deceased's family within the meaning of the Workmen's Compensation Act 1925 who at the time of the death were or are treated for the purposes of the scheme as having been wholly or in part dependent on the deceased's earnings) ; and subject to the provisions of this Act such benefit shall be a capital sum or sums of an amount or aggregate amount not exceeding £300. 1925 c. 84.

8.—(1) Subject to subsection (2) of this section, subsections (2) Ancillary to (6) and (8) of section 4 of this Act shall have effect for the purposes of section 5 of this Act as if in those subsections— provisions to s. 5.

- (a) any reference to a scheme were a reference to a scheme under section 5 ;
- (b) any reference to section 2 were a reference to section 5 ;

(c) any reference to allowances (other than the reference in subsection (4)) included a reference to any other benefit under section 5.

(2) Nothing in this Act shall authorise the recovery of sums by deduction from benefit under section 5 in respect of the death of any person, or the abatement of such benefit.

(3) Without prejudice to the powers conferred by section 4 as applied by this section, a scheme under section 5 may in particular make provision—

(a) for the determination by a medical board of questions of such classes as may be prescribed by the scheme ;

(b) for the determination by a Commissioner appointed under section 97(3) of the Social Security Act, or by a tribunal constituted under section 116 of that Act, on a reference in accordance with the provisions of the scheme, of questions of any such classes as may be so prescribed.

(4) Without prejudice to the provision made by subsections (1) and (3) above with respect to the determination of questions, a scheme under section 5 may, where it appears to the Secretary of State expedient so as to avoid the introduction of working of the scheme being impeded, provide that, in any circumstances prescribed by the scheme, a person shown to be disabled by a disease shall be presumed for the purposes of the scheme to have been disabled by that disease for such period previously, and the disablement to have been during that period or any part of it of such a nature and degree, as may be so prescribed.

1925 c. 84. (5) A scheme under section 5 may direct that so much of section 26 of, and Schedule 2 to, the Workmen's Compensation Act 1925 as provides for the administration by the county court of workmen's compensation payable in the case of death, and so much of section 21(2) of that Act as provides for the amount of compensation payable to each dependant to be settled by the county court, shall apply, subject to such modifications as may be prescribed by the scheme, in relation to benefits payable under the scheme in respect of the death of any person ; and for the purposes of any such scheme the provisions so applied and sections 22 and 27 of the said Act of 1925 shall have effect accordingly notwithstanding any repeal effected by the original Industrial Injuries Act.

(6) In the application of subsection (5) of this section to Scotland, references therein to sections 21, 22, 26 and 27 of the Workmen's Compensation Act 1925 shall include references to section 49 of that Act in so far as it relates to those sections, and for references to the county court there shall be substituted references to the sheriff court.

Administrative and other general provisions

9.—(1) A scheme under section 2 or section 5 of this Act may include provisions for adjusting the rate of, or extinguishing any right to, an allowance under the section in question or under the other of those sections in a case where the same person is, or would otherwise be, entitled separately in respect of two or more injuries or diseases to an allowance under the section in question or, as the case may be, to both such an allowance and an allowance under the other of those sections. Adjustment of benefit in certain cases.

(2) Where immediately before the commencement of the former Old Cases Act a person was receiving payments by virtue of section 3(2) of the Workmen's Compensation and Benefit (Amendment) Act 1965 of a greater amount or aggregate amount than, but for the provisions of this subsection, he would be entitled to receive after the commencement of this Act by way of allowances under section 2 or 5 of this Act, he shall continue to be entitled to that greater amount or aggregate amount for any period after the commencement of this Act for which he would have so continued if the former Old Cases Act and this Act had not been passed. 1965 c. 79.

(3) Any sum due from a person by virtue of any provision made by or under this Act may be recovered from him by reduction of any payment under this Act or from benefit under the Social Security Act.

10.—(1) A scheme under section 2 or 5 of this Act may provide for the recovery on summary conviction of monetary penalties in respect of an offence under this Act, being a contravention of or failure to comply with a provision of such a scheme, so however that such penalties shall not exceed £10 for each offence or, where the offence consists in continuing any such contravention or failure after conviction thereof, £10 together with a further £10 for each day on which it is so continued. Penalties, etc.

(2) Nothing in this section shall be construed as preventing the Secretary of State from recovering by means of civil proceedings any sums due to the National Insurance Fund.

(3) Notwithstanding any provision in any Act prescribing the period within which summary proceedings may be commenced, proceedings for an offence under this Act may be commenced at any time within 12 months after the commission of the offence.

(4) In any proceedings for an offence under this Act, the wife or husband of the accused shall be competent to give evidence, whether for or against the accused:

Provided that the wife or husband shall not be compellable either to give evidence or, in giving evidence, to disclose any

communication made to her or him by the accused during the marriage.

Proof of age,
death and
marriage.

11. Section 160 of the Social Security Act (access to services of the Registrar General) apply for the purposes of this Act as they apply for the purposes of that Act.

Exemption
from stamp
duty.

12. Stamp duty shall not be chargeable—

- (a) upon such documents used in connection with business under sections 2 to 4 of this Act as may be specified in a scheme made under section 2 ;
- (b) upon such documents used in connection with business under sections 5 to 8 of this Act as may be specified in a scheme under section 5.

Reciprocal
arrangements
with Northern
Ireland.

13.—(1) The Secretary of State may, with the consent of the Treasury, make reciprocal arrangements for payments under section 2 or 5 of this Act to be made in Northern Ireland out of the same fund as payments under any corresponding legislation of Northern Ireland, and for payments under any such corresponding legislation to be made out of the National Insurance Fund, and for making any necessary financial adjustments between the two funds resulting from the arrangements.

(2) In relation to payments out of the National Insurance Fund by virtue of any such arrangements, the provisions of any scheme under section 2 or 5 of this Act shall, to such extent and subject to such modifications as may be provided by such a scheme, apply as if they were payments under section 2 or section 5.

Interpretation.

14.—(1) In this Act, except where the context otherwise requires—

“corresponding disablement pension rate” means the weekly rate for the time being of a pension payable under section 57(6) of the Social Security Act in respect of an assessment of 100 per cent. ;

1967 c. 34.

“the former Old Cases Act” means the Industrial Injuries and Diseases (Old Cases) Act 1967 ;

1946 c. 62.

“the original Industrial Injuries Act” means the National Insurance (Industrial Injuries) Act 1946 ;

“pneumoconiosis” means fibrosis of the lungs due to silica dust, asbestos dust or other dust, and includes the condition of the lungs known as dust-reticulation ; and, without prejudice to subsection (2) below, in the case of a person who suffers from pneumoconiosis accompanied by tuberculosis, the effects of the tuberculosis may be treated, for the purposes of any scheme under section 2 or 5 of this Act, as if they were effects of the pneumoconiosis ;

“prescribed”, in relation to an occupation and a disease to which section 5 of this Act applies, means any occupation in the case of which, by virtue of regulations under section 76 of the Social Security Act (including regulations made before this Act under section 56 of the National Insurance (Industrial Injuries) Act 1965) 1965 c. 52. that disease is prescribed in relation to earners employed in employed earners’ employment;

“the Social Security Act” means the Social Security Act 1975 c. 1975;

“workmen’s compensation” means compensation under any of the Workmen’s Compensation Acts or under any contracting-out scheme duly certified under any of those Acts;

“the Workmen’s Compensation Acts” means the Workmen’s Compensation Acts 1925 to 1945, or the enactments repealed by the Workmen’s Compensation Act 1925 c. 84. 1925, or the enactments repealed by the Workmen’s 1906 c. 58. Compensation Act 1906;

and unless the context otherwise requires other expressions defined in the Social Security Act have the same meanings as in that Act.

(2) In the case of a person the extent of whose disablement resulting from pneumoconiosis, or from pneumoconiosis accompanied by tuberculosis, would if his physical condition were otherwise normal, be determined in accordance with a scheme under section 2 or section 5 of this Act to be of a gravity comparable to an assessment under the Social Security Act at not less than 50 per cent., and the pneumoconiosis is accompanied or, as the case may be, further accompanied by emphysema or chronic bronchitis, the effects of the emphysema or chronic bronchitis may be treated for the purposes of any such scheme as if they were effects of the pneumoconiosis.

(3) In subsection (1) above, in the definition of “prescribed”, the reference to regulations shall be construed, in relation to any scheme under section 5 of this Act, as a reference to the regulations in force at the commencement of the scheme or at such time thereafter as may be prescribed by the scheme, whether regulations under section 76 of the Social Security Act or under section 56 of the National Insurance (Industrial Injuries) Act 1965.

(4) For the purposes of this Act—

(a) a period shall be treated as considerable if it lasts or can be expected to last for not less than 13 weeks;

- (b) a person may be treated as being, as the result of an injury or disease or as the joint result of two or more injuries or diseases, totally incapable of work and likely to remain so incapable for a considerable period notwithstanding that the disability resulting from the injury or disease or, as the case may be, from the injuries or diseases taken together is not such as to prevent him from being capable of work, if it is likely to prevent his earnings (including any remuneration or profit derived from a gainful occupation) exceeding £104 a year.

(5) Except where the context otherwise requires, any reference in this Act to any enactment shall be construed as a reference to that enactment as amended, extended or applied by or under any other enactment.

Citation,
extent and
commence-
ment.

15.—(1) This Act may be cited as the Industrial Injuries and Diseases (Old Cases) Act 1975.

(2) This Act does not extend to Northern Ireland.

1975 c. 18.

(3) Subject to section 3(4) of the Social Security (Consequential Provisions) Act 1975, this Act comes into force on 6th April 1975.



Industrial Injuries and Diseases (Northern Ireland Old Cases) Act 1975

1975 CHAPTER 17

An Act to consolidate the Workmen's Compensation (Supplementation) Measures (Northern Ireland) 1966 to 1974 and related enactments. [20th March 1975]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. The Workmen's Compensation Acts and any other enactment repealed by section 88 of the National Insurance (Industrial Injuries) Act (Northern Ireland) 1946 shall continue to apply to any cases to which, if the Supplementation Act had not been passed, they would have applied by virtue of the said section 88, being certain cases where a right to compensation arises or has arisen in respect of employment before 5th July 1948. Continuation of workmen's compensation in certain cases. 1946 c. 21 (N.I.).

2.—(1) The Department may, with the consent of the Department of Finance, make regulations (in this Act referred to as "the regulations") conferring a right to allowances payable out of the National Insurance Fund on persons who are, or have at any time after 23rd July 1951 been, entitled to weekly payments by way of workmen's compensation, other than a person whose entitlement to such payments— Regulations to provide for supplementing workmen's compensation.

- (a) arose in consequence of an accident happening after 31st December 1923; and
- (b) ceased before 24th July 1956.